

HOUSE No. 4130

The Commonwealth of Massachusetts

PRESENTED BY:

Leigh Davis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to renewing and expanding the Accelerated Bridge Program.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>1/16/2025</i>
<i>Shirley B. Arriaga</i>	<i>8th Hampden</i>	<i>10/8/2025</i>
<i>Lydia Edwards</i>	<i>Third Suffolk</i>	<i>10/9/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>10/15/2025</i>
<i>Lisa Field</i>	<i>3rd Bristol</i>	<i>10/2/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>10/1/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>10/21/2025</i>
<i>Francisco E. Paulino</i>	<i>16th Essex</i>	<i>10/29/2025</i>

HOUSE No. 4130

By Representative Davis of Great Barrington, a petition (accompanied by bill, House, No. 4130) of Leigh Davis for legislation to establish an accelerated bridge program to finance the repair, replacement and maintenance of structurally-deficient bridges through the use of certain bonds. Transportation.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to renewing and expanding the Accelerated Bridge Program.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to establish the accelerated bridge program to repair bridges in the commonwealth, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public safety.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

SECTION 1. Chapter 29 of the General Laws is hereby amended by inserting, after Section 2JJJJJ, the following section:-

Section 2KKKKKK. (a) There shall be established and set up on the books of the commonwealth a separate fund, to be known as the Accelerated Bridge Fund. The fund shall: (i) address the specific needs of rural and underserved communities in the commonwealth to ensures equitable distribution of resources; and (ii) prioritize projects in rural areas in order to expedited timelines, additional technical support and dedicated funding to mitigate the disproportionate impact of bridge closures. It shall consist of amounts credited to the fund in accordance with this section. The secretary of the Massachusetts Department of Transportation

shall be the custodian of the fund and shall collaborate with local governments in rural areas to identify high-priority projects and streamline the allocation of resources.

(b) The fund shall consist of: (i) revenue from appropriations or other money authorized by the general court and specifically designated to be credited to the fund; (ii) interest earned on money in the fund; (iii) federal grants and other gifts, grants and donations; and (iv) the proceeds of bonds issued by the commonwealth. Amounts credited to the fund shall not be subject to further appropriation and any money remaining in the fund at the end of a fiscal year shall not revert to the General Fund.

(c) Money in the fund shall be expended for the accelerated bridge program established in section 28 of chapter 84 to carry out the goals of the program including, but not limited to: (i) the repairing and replacement of bridges classified as structurally deficient by the Massachusetts Department of Transportation; (ii) preventive maintenance to extend the life of bridges at risk of becoming structurally deficient; (iii) expediting repairs and upgrades in rural and underserved communities to ensure equitable infrastructure investment; and (iv) engineering studies, project design and innovation grants focused on sustainable and resilient bridge construction methods.

(d) The fund shall prioritize funding for program projects addressing: (i) bridges with the highest safety risks as determined by Massachusetts Department of Transportation's bridge inspection program; (ii) structures critical to emergency response routes, economic activity and community connectivity; (iii) projects in rural areas where alternative routes create significant inconvenience or safety concerns; and (iv) regions that have historically received a lower proportion of transportation funding under statewide initiatives.

(e) The Massachusetts Department of Transportation shall annually, not later than December 31 of each year, report on the activity of the fund to the: (i) chairs of the joint committee on bonding, capital expenditures and state assets; (ii) chairs of the joint committee on transportation; (iii) house and senate committees on ways and means; and (iv) clerks of the house of representatives and senate.

SECTION 2. Chapter 84 of the General Laws is hereby amended by adding the following section:-

Section 28. (a) For the purposes of section, the following words shall, unless the context clearly requires otherwise, have the following meanings:

“Committee”, the bridge improvement oversight committee.

“Department”, the Massachusetts Department of Transportation.

“Program”, the accelerated bridge program.

(b) There shall be established an accelerated bridge program to reinstate and expand efforts to finance the repair, replacement and maintenance of structurally-deficient bridges across the commonwealth. The program shall address rising infrastructure costs, prioritize equitable investment in rural and underserved areas and leverage federal funding opportunities to ensure statewide transportation safety and economic resilience.

(c) There shall be established a bridge improvement oversight committee to monitor the program’s implementation and recommend improvements to the program under this section. The committee shall consist of 5 members: (i) the secretary of department or their designee, who shall serve as chair; (ii) the administrator of the division of highways of the department or their

designee; (iii) 1 member appointed by the speaker of the house of representatives, who shall be from a rural community in the commonwealth; (iv) 1 member appointed by the president of the senate, who shall be from a rural community in the commonwealth; and (v) 1 member appointed by the governor, who shall be an independent engineering expert.

(d) The program shall be funded by the Accelerated Bridge Fund established in section 2KKKKKK of chapter 29.

(e) The department shall implement streamlined permitting, contracting and approval processes for the program's projects to reduce the time required for project initiation and completion. Public-private partnerships and design-build contracts shall be encouraged by the department to accelerate construction timelines while maintaining high standards of safety and quality.

(f) The department shall maintain a publicly accessible online portal on its website displaying information on the program's ongoing and planned projects, including progress updates, project impacts and contact information for public inquiries. The portal shall include a specific section highlighting projects in rural communities.

(g) All program projects under this section shall incorporate climate-resilient design principles, minimize environmental impact and comply with applicable state and federal environmental regulations.

(h) The committee, in consultation with the department, shall prepare an annual report that shall include: (i) projects funded under this section, including their scope, timeline and cost; (ii) the progress in reducing the number of structurally-deficient bridges in the commonwealth; and (iii) the allocation and expenditure of funds, with specific details on investments in rural

74 areas. The annual report shall be submitted, not later than December 31 of each year, to the
75 chairs of the joint committee on transportation, house and senate committees on ways and means
76 and the clerks of the house of representatives and senate.

77 SECTION 3. To meet a portion of the expenditures necessary in carrying out section 1 of
78 this act, the state treasurer shall, upon request of the governor, issue and sell special obligation
79 bonds of the commonwealth in an amount to be specified by the governor from time to time but
80 not less than, in the aggregate, \$4,000,000,000. Bonds issued by the state treasurer under this
81 section shall be issued as special obligation bonds under section 2KKKKKK of chapter 29 of the
82 General Laws. All special obligation bonds issued under this section shall be designated on their
83 face, Accelerated Structurally-Deficient Bridge Improvement Bonds of 2026 and shall be issued
84 for a maximum term of years, not exceeding 30 years, as the governor may recommend to the
85 General Court under Section 3 of Article LXII of the Amendments to the Constitution. All bonds
86 issued under this section shall be payable not later than June 30, 2060. All principal and interest
87 on special obligation bonds issued under this section shall be payable from the Accelerated
88 Bridge Fund established in said section 2 KKKKKK of said chapter 29 and shall be payable
89 solely in accordance with said section 2 KKKKKK of said chapter 29.